

Court No. - 21

Case :- WRIT - C No. - 2314 of 2023

Petitioner :- Sahebe Alam

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Birendra Prasad Maurya,Shivakant Tripathi,Smt. Mithlesh Kumari

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Learned counsel for the respondents prays for and is granted a week's time to obtain instructions.

Put up on 01.02.2023 as fresh.

In the meantime, recovery in pursuance of the impugned bill, shall remain stayed.

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

Order Date :- 24.1.2023

S.Chaurasia

Court No. - 21

Case :- WRIT - C No. - 2314 of 2023

Petitioner :- Sahebe Alam

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Birendra Prasad Maurya,Shivakant
Tripathi,Smt. Mithlesh Kumari

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

A weeks' further time is granted to Sri N.K. Tiwari to complete his instructions.

List as fresh on 13.2.2023.

Interim order shall remain in operation till the next date of listing.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.2.2023

Jaideep/-

Court No. - 40

Case :- WRIT - C No. - 2314 of 2023

Petitioner :- Sahebe Alam

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Birendra Prasad Maurya, Shivakant Tripathi, Smt. Mithlesh Kumari

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard Shri Birendra Prasad Maurya, learned counsel for petitioner and Shri N.K. Tiwari, learned counsel for Purvanchal Vidyut Vitran Nigam.

The present writ petition has been preferred questioning the validity of impugned Recovery Certificate (R.C.) Prapatra-36 of Rs.1,79,621/- electricity bill and other charges issued by the Tehsildar, Tehsil Manjhanpur, District Kaushambi and direct the respondent no.3 concerned electricity department to provide amended bill to the petitioner by re-calculating the electricity bill dated 27.09.2022 of Rs.1,39,622/- being letter no.6675 issued by Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd., Kaushambi and further direct the respondent no.3 to compound the Case Crime no.581 of 2022 in P.S. Anti Power Theft Bharvari, District Kaushambi under Section 135 Indian Electricity Act against the petitioner.

The matter was taken up on 24.01.2023. On the said date, the Co-ordinate Bench of this Court has asked learned counsel for the respondent to seek instructions in the matter and the recovery in pursuance of the impugned bill was stayed.

Today when the matter is taken up, Shri N.K. Tiwari, learned counsel for Purvanchal Vidyut Vitran Nigam has placed the instruction 07.02.2023 sent by Executive Engineer- respondent no.3, whereby, he has written a letter to the Additional District Officer (F/R), Kaushambi indicating therein that the demand notice no.7830 dated 03.11.2022 is already withdrawn. The said instruction is taken on record.

Considering the facts and circumstances of the case, once the Authority has already withdrawn the recovery proceeding, we are not at all inclined to proceed further in the matter, as the cause of

action does not survive. Suffice to indicate that the Authority would be at liberty to proceed strictly in accordance with law as per the procedure contemplates under Clause 6.8 and 8.1 of the Electricity Supply Code 2005.

With these observations, the writ petition is ***disposed of***.

Order Date :- 13.2.2023

A. Pandey